

GINSBURG, J., dissenting

In our “compound republic,” the division of authority between the United States and the States was meant to operate as “a double security [for] the rights of the people.” The Federalist No. 51, at 323 (J. Madison); see *Bond v. United States*, 564 U. S. 211, 221 (2011). The separate-sovereigns doctrine, however, scarcely shores up people’s rights. Instead, it invokes federalism to withhold liberty. See *Bartkus*, 359 U. S., at 155–156 (Black, J., dissenting).¹

It is the doctrine’s premise that each government has—and must be allowed to vindicate—a distinct interest in enforcing its own criminal laws. That is a peculiar way to look at the Double Jeopardy Clause, which by its terms safeguards the “person” and restrains the government. See, e. g., *id.*, at 155; *United States v. All Assets of G. P. S. Automotive Corp.*, 66 F. 3d 483, 498 (CA2 1995) (Calabresi, J., concurring). The Double Jeopardy Clause embodies a principle, “deeply ingrained” in our system of justice,

“that the State with all its resources and power should not be allowed to make repeated attempts to convict an individual for an alleged offense, thereby subjecting him to embarrassment, expense and ordeal and compelling him to live in a continuing state of anxiety and insecurity, as well as enhancing the possibility that even though innocent he may be found guilty.” *Green v. United States*, 355 U. S. 184, 187–188 (1957).

“Looked at from the standpoint of the individual who is being prosecuted,” the liberty-denying potential of successive prosecutions, when Federal and State Governments prosecute in tandem, is the same as it is when either

¹The Court writes that federalism “advances individual liberty in many ways,” but does not always do so. *Ante*, at 690 (citing, for example, state prohibition of activities authorized by federal law). The analogy of the separate-sovereigns doctrine to dual regulation is inapt. The former erodes a constitutional safeguard against successive prosecutions, while the Constitution contains no guarantee against dual regulation.